

**UNITED STATES PATENT AND TRADEMARK OFFICE
BEFORE THE DIRECTOR OF THE
UNITED STATES PATENT AND TRADEMARK OFFICE**

In the Matter of	)	
	)	
Qianqian Wu,	)	Proceeding No. D2026-23
	)	
Respondent	)	
_____	)	

FINAL ORDER PURSUANT TO 37 C.F.R. § 11.26

The Director of the Office of Enrollment and Discipline (“OED Director”) for the United States Patent and Trademark Office (“USPTO” or “Office”) and Qianqian Wu (“Respondent”), have submitted a Proposed Settlement of Disciplinary Matter (“Agreement”) to the Under Secretary of Commerce for Intellectual Property and Director of the United States Patent and Trademark Office (“USPTO Director”) for approval.

The Agreement, which resolves all disciplinary action by the USPTO arising from the stipulated facts set forth below, is hereby approved. This Final Order sets forth the parties’ stipulated facts, legal conclusion, and sanctions.

Jurisdiction

1. At all times relevant hereto, Respondent of Abington, Massachusetts, is a registered patent agent (Registration Number 78,599). Respondent is subject to the USPTO Rules of Professional Conduct, 37 C.F.R. § 11.101 *et seq.*
2. The USPTO Director has jurisdiction over this matter pursuant to 35 U.S.C. §§ 2(b)(2)(D) and 32 and 37 C.F.R. §§ 11.19, 11.20, and 11.26.

Joint Stipulated Facts

3. Respondent is a registered patent agent (Reg. No. 78,599) who is based in Abington, Massachusetts. At all relevant times, she has been a solo practitioner.
4. On April 7, 2023, in *In re Qianqian Wu*, Proceeding No. D2023-24 (USPTO Apr. 7, 2023),¹ the USPTO Director publicly reprimanded Respondent on ethical grounds in connection with the submission of erroneous Certifications of Micro Entity Status to the USPTO.
5. Following the reprimand, Respondent engaged an experienced registered practitioner to act as her personal mentor through a formal mentorship program.

¹ All USPTO disciplinary decisions are publicly accessible at <https://foiadocuments.uspto.gov/oed/>.

6. Between August and November 2023, the USPTO entered Show Cause Orders (“SCOs”) entered in many pending USPTO patent applications where other registered practitioners, not Respondent, were appointed as the practitioner of record for the applicants.
7. The SCOs stated that the USPTO had reason to believe that Mark Wang of Wayne & King (a.k.a. W&K) inserted the signature of registered practitioner Jie Yang on filings made in each application. Mark Wang had never been authorized to practice before the USPTO in patent matters. The SCOs required the applicants to show cause why the USPTO should not terminate the proceedings in each of the patent applications.
8. Between August and November 2023, Respondent was contacted by Mr. Xiaoyi Dai of the People’s Republic of China to assist with responding to the SCOs entered what would become a total of 182 pending USPTO patent applications. Respondent agreed, and she became the practitioner of record in the 182 applications.
9. Neither Respondent nor Mr. Dai had been involved in the patent application prosecution activities referenced in the SCOs for the 182 applications, all of which occurred prior to Respondent becoming practitioner of record in those applications. Further, in approximately half of the 182 applications, the SCOs were issued prior to Respondent becoming the practitioner of record — *i.e.*, the applicants or their non-practitioner representatives already had received the SCO when Respondent was engaged for their matter. In the other half of the 182 applications, Respondent was of already of record at the time the USPTO issued the SCOs in such applications, and Respondent relied on Mr. Dai to contact the applicants and inform them about the SCOs in their applications.
10. Respondent now acknowledges that, in light of the totality of the circumstances, she should have taken reasonable steps to ensure that the applicants knew about the SCO before she responded on their behalf (*e.g.*, she should have directly contacted each applicant regarding the SCO).
11. Respondent represents that, while rushing to respond to certain SCOs in October 2023, she collaborated online with certain patent applicants to draft responses but that two applicants misunderstood Respondent and signed the responses to the SCOs instead of a practitioner in violation of USPTO signature requirements. Respondent acknowledges that she failed to detect these signature errors in the responses that were filed with the USPTO.
12. Respondent represented to OED that she did not detect the erroneous signatures because of the confusion from exchanging of multiple electronic drafts.
13. Respondent represented to OED that she did not work with her mentor in connection with the SCOs, and she acknowledges that she should have sought advice from her mentor.
14. Respondent represented to OED that she now recognizes that under 37 C.F.R. §§ 1.31 and 1.33(b), only the practitioner of record or an authorized party may sign responses to SCOs.

15. Respondent represents to OED that she has made changes to her document review and signature practices since 2023, and that she will continue making improvements.

Additional Considerations

16. Respondent has acknowledged her ethical lapses, demonstrated genuine contrition, and accepted responsibility for her acts and omissions.

17. Respondent has been previously disciplined by the USPTO on April 7, 2023 under 37 C.F.R. §§ 11.103 (diligence) and 11.804(d) (conduct prejudicial to the administration of the patent application process) for failing to conduct a reasonable inquiry under the circumstances pursuant to 37 C.F.R. § 11.18 prior to signing and presenting certifications of micro entity status to the USPTO.

Joint Legal Conclusions

18. Respondent acknowledges that, based on the information contained in the joint stipulated facts, above, that Respondent's acts and omissions violated the following provisions of the USPTO Rules of Professional Conduct:

- a. 37 C.F.R. § 11.103 (diligence) by not employing appropriate measures to ensure documents filed at the USPTO have been properly signed by a practitioner of record;
- b. 37 C.F.R. § 11.104 (communication) by not employing appropriate measures to communicate with applicants regarding the importance of properly signed documents used in their respective USPTO patent application filings; and
- c. 37 C.F.R. § 11.804(d) (practitioner must not engage in conduct adversely affecting the integrity of the USPTO patent application process) by not employing appropriate measure to ensure that documents provided to her for filing at the USPTO had been signed by the proper signatory.

Agreed-Upon Sanction

19. Respondent agrees and it is hereby **ORDERED** that:

- a. Respondent shall be, and hereby is, publicly reprimanded;
- b. Respondent shall be placed on probation for twelve (12) months beginning with the date of this Final Order;
- c. (1) if the OED Director is of the good-faith opinion that Respondent, during Respondent's probationary period, failed to comply with any provision of the Agreement, this Final Order, or any provision of the USPTO Rules of Professional Conduct, the OED Director shall:

(A) issue to Respondent an Order to Show Cause why the USPTO Director should not enter an order immediately suspending the Respondent for up to two (2) months for the violations set forth in the Joint Legal Conclusions, above;

(B) send the Order to Show Cause to Respondent at the last address of record Respondent furnished to the OED Director pursuant to 37 C.F.R. § 11.11(a);

(C) grant Respondent fifteen (15) days to respond to the Order to Show Cause; and

(2) in the event that after the 15-day period for response and consideration of the response, if any, received from Respondent, the OED Director continues to be of the good-faith opinion that Respondent, during Respondent's probationary period, failed to comply with the USPTO Rules of Professional Conduct, the Final Order, or any provision of the USPTO Rules of Professional Conduct, the OED Director shall:

(A) deliver to the USPTO Director: (i) the Order to Show Cause; (ii) Respondent's response to the Order to Show Cause, if any; and (iii) argument and evidence supporting the OED Director's position; and

(B) request that the USPTO Director enter an order immediately suspending Respondent for up to two (2) months for the violations set forth in the Joint Legal Conclusions above;

- d. Nothing herein shall prevent the OED Director from seeking discrete discipline for any misconduct that formed the basis for an Order to Show Cause issued pursuant to the preceding subparagraph;
- e. In the event the Respondent seeks a review of any action taken pursuant to subparagraph letter (c), above, such review shall not operate to postpone or otherwise hold in abeyance any suspension;
- f. As a condition of her probation, prior to the expiration of her probation period, Respondent shall (1) complete at least one hour of continuing education regarding the ethical representation of clients before the USPTO in patent matters and (2) provide written evidence to the OED Director of her completion of such education;
- g. As a condition of her probation, during her probation period, Respondent shall (1) continue seeking advice from her mentor on all matters involving her practice before the USPTO in patent matters, and (2) provide a quarterly

report in writing to the OED Director confirming the continuation of the mentorship;

- h. As a condition of her probation, within thirty (30) days of the Final Order approving this Agreement, Respondent shall (1) watch the video-recorded presentation "USPTO Hour: Patents priorities for FY2025 and fraud and threat mitigation," which is publicly available on the USPTO's website at <https://www.uspto.gov/about-us/events/uspto-hour-patents-priorities-fy2025-and-fraud-and-threat-mitigation>, and (2) provide written evidence to the OED Director of her watching the presentation
- i. The OED Director shall electronically publish this Final Order at the OED's electronic FOIA Reading Room, which is publicly accessible through the Office's website at: <https://foiadocuments.uspto.gov/oed/>;
- j. The OED Director shall publish a notice in the *Official Gazette* that is materially consistent with the following:

Notice of Reprimand and Probation

This notice concerns Ms. Qianqian Wu of Abington, Massachusetts, who is a registered patent agent (Registration Number 78,599). Ms. Wu is hereby publicly reprimanded and placed on probation for violating 37 C.F.R. §§ 11.103 (diligence); 11.104 (communication); and 11.804(d) (conduct prejudicial to the integrity of the USPTO patent application process) predicated on Ms. Wu's not taking appropriate measures to ensure documents provided to her for filing with the USPTO had been signed by the proper person under 37 C.F.R. §§ 1.31 and 1.33(b). Ms. Wu shall serve a probation period of twelve (12) months commencing on the date of reprimand and is permitted to practice before the Office in patent matters during her probationary period unless she is subsequently suspended by order of the USPTO Director.

Ms. Wu was agent of record in 182 patent applications where she was asked to respond to show cause orders ("SCOs") that were issued in each application because the USPTO previously determined that a person not authorized to practice in patent matters before the USPTO had inserted the S-signature of a registered practitioner on filings made in the applications. In two (2) of the responses to SCOs, applicants signed their own names instead of allowing Ms. Wu to sign her name as practitioner of record for the applicant as a juristic entity under 37 C.F.R. §§ 1.31

and 1.33(b). Ms. Wu represents that she missed the two (2) signature mistakes while filing her 182 responses in October 2023.

37 C.F.R. §§ 1.31 and 1.33(b) require that juristic entity patent applicants be represented by a registered patent practitioner before the USPTO and that amendments and other papers, except for certain entity size assertions, must be signed by the patent practitioner when acting on behalf of a juristic entity client. Ms. Wu has acknowledged her ethical lapses, demonstrated genuine contrition, and accepted responsibility for her acts and omissions. Ms. Wu was previously disciplined by the USPTO in April 2023 for not always conducting a reasonable inquiry under the circumstances pursuant to 37 C.F.R. § 11.18 prior to signing and presenting certifications of micro entity status to the USPTO. As conditions of probation, Ms. Wu has agreed to, *e.g.*, (1) make regular practice reports to OED during her probation period confirming that she continues to be regularly being mentored in her practice, and (2) attend continuing legal education class involving legal ethics.

This action is the result of a settlement agreement between Ms. Wu and the OED Director pursuant to the provisions of 35 U.S.C. §§ 2(b)(2)(D) and 32 and 37 C.F.R. §§ 11.19, 11.20, and 11.26. Disciplinary decisions involving practitioners are posted for public reading at the OED FOIA Reading Room, accessible at: <https://foiadocuments.uspto.gov/oed/>;

- k. Nothing in the Agreement or this Final Order shall prevent the Office from considering the record of this disciplinary proceeding, including the Final Order: (1) when addressing any further complaint or evidence of the same or similar misconduct concerning Respondent brought to the attention of the Office and (2) in any future disciplinary proceeding against Respondent (i) as an aggravating factor to be taken into consideration in determining any discipline to be imposed, and/or (ii) to rebut any statement or representation by or on Respondent's behalf;
- l. Respondent waives all rights to seek reconsideration of this Final Order under 37 C.F.R. § 11.56, waives the right to have this Final Order reviewed under 37 C.F.R. § 11.57, and waives the right otherwise to appeal or challenge this Final Order in any manner; and

- m. Each party shall each bear their own costs incurred to date and in carrying out the terms of the Agreement and this Final Order.

Digitally signed by TRICIA
CHOE
Date: 2026.04.14 09:10:41
-04'00'

TRICIA CHOE

Tricia Choe
Associate General Counsel for General Law
United States Patent and Trademark Office

Date

on delegated authority by

John A. Squires
Under Secretary of Commerce for Intellectual Property and
Director of the United States Patent and Trademark Office

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that the foregoing Final Order was sent, on this day, to the parties in the manner indicated below:

Via first-class certified mail, return receipt requested and email:

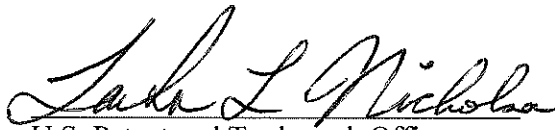
Ms. Qianqian Wu
64 Bank Street
Abington, MA 02351
[REDACTED]

Respondent

Via email:

Mary Brannen
[REDACTED]
Counsel for OED Director

4/14/2026
Date


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Alexandria, VA 22313-1450